



CHAPTER xxx.

An Act to confirm a Provisional Order under A.D. 1929.
the Private Legislation Procedure (Scotland) —
Act 1899 relating to Kirkcaldy Corporation.
[10th May 1929.]

WHEREAS the Provisional Order set forth in the
schedule hereunto annexed has been made by
one of His Majesty's Principal Secretaries of State under
the provisions of the Private Legislation Procedure 62 & 63 Vict.
(Scotland) Act 1899 as read with the Secretaries of c. 47.
State Act 1926 and it is requisite that the said Order
should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows :—

1. The Provisional Order contained in the schedule
hereunto annexed shall be and the same is hereby con-
firmed.

Confirma-
tion of
Order in
schedule.

2. This Act may be cited as the Kirkcaldy Corpora-
tion Order Confirmation Act 1929.

Short title.

A.D. 1929.

SCHEDULE.

KIRKCALDY CORPORATION.

*Provisional Order for providing and running omnibuses
establishment of loans fund and simplification of
borrowing.*

WHEREAS the burgh of Kirkcaldy in the county of Fife (hereinafter called "the burgh") is a royal burgh under the municipal administration of the provost magistrates and councillors thereof (hereinafter called "the Corporation") :

And whereas under the Kirkcaldy Corporation and Tramways Act 1899 the Kirkcaldy Corporation Order 1904 and the Kirkcaldy Corporation Order 1910 the Corporation have constructed and maintain tramways in and in the neighbourhood of the burgh and it is expedient that they should be authorised to provide maintain and run omnibuses :

And whereas it is expedient that the Corporation should be authorised to borrow moneys for the purposes above mentioned :

And whereas estimates have been prepared by the Corporation for the purposes aforesaid and such estimates are as follows :—

For the purchase of land the sum of	-	£ 7,500
For the provision and re-construction of sheds or depôts for the housing of motor omnibuses the sum of	- -	22,500
For the purchase of motor omnibuses the sum of	- - - -	40,000

And whereas it is expedient for providing better facilities in the management of the funds of the Corporation on loans account and a simplification of the accounts of the Corporation relating to borrowed money and the redemption thereof that the powers contained in this Order in relation to the borrowing of money and the establishment of a loans fund should be conferred upon the Corporation :

And whereas it is expedient that such further provisions should be enacted as are in this Order contained : A.D. 1929.

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary of State confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

1. This Order may be cited as the Kirkcaldy Corporation Order 1929 and shall come into operation at the date of the passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order.” Title and commencement.

2. This Order is divided into Parts as follows :— Division of Order into Parts.
 Part I.—Preliminary.
 Part II.—Omnibuses.
 Part III.—Loans fund.

PART I.

PRELIMINARY.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Order shall have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

In this Order unless there be something in the subject or context repugnant to such construction the following words and expressions shall have the following meanings (that is to say) :—

“The burgh” means the municipal burgh of Kirkcaldy as constituted at the commencement of this Order;

“The Corporation” means the provost magistrates and councillors of the burgh;

“The county” means the county of Fife;

“Local Acts and Orders” means the Kirkcaldy Burgh and Harbour Act 1876 the Kirkcaldy

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Corporation and Tramways Act 1899 the Kirkcaldy Corporation Order 1904 the Kirkcaldy Corporation Order 1910 the Kirkcaldy Corporation Order 1914 and this Order;

“Minister” means the Minister of Transport;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any undertakings land or other property except the common good for the time being of the Corporation;

“Road authority” means with reference to any road or part of a road or bridge with the immediate approaches thereto or any part thereof over which any proposed omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road or bridge with the immediate approaches thereto or any part thereof;

“Magistrates” means the provost and bailies of the burgh;

“Sheriff” means the sheriff of the county or any of his substitutes;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any

Act of Parliament passed or to be passed of any local authority in Scotland other than the Corporation but does not include annuities rent-charges or securities transferable by delivery. A.D. 1929.

PART II.

OMNIBUSES.

4.—(1) Subject to the provisions of this Order the Corporation may provide and maintain (but shall not manufacture) and may run omnibuses within the burgh and with the consent of the Minister and the local authority of the district along so much of the following routes as are without the burgh (namely):—

Power to
run omni-
buses.

- (i) Dunnikier Road as far as Oswald Road;
- (ii) Oswald Road as far as Dunnikier Road; and
- (iii) Overton Road as far as Oswald Road and along the existing tramway route in the burgh of Dysart:

Provided that the consent of a local authority shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister.

(2) In the case of any application under the provisions of this section for the consent of the Minister the Corporation shall give notice in writing of their proposals to the road authority (where it is not also the local authority) and shall publish notice of such proposals in the *Edinburgh Gazette* and in such other manner as the Minister shall direct stating the manner in which and the time within which any persons affected by such proposals may object thereto and if any objection shall be made by any such person or the consent of the local authority is withheld the Minister may direct an inquiry to be held.

(3) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running equipment maintenance and repair of such omnibuses but the

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A.D. 1929. Corporation shall not create or permit any nuisance on any lands upon which they erect any such houses buildings or sheds.

(4) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(5) The Corporation shall perform in respect of the omnibuses provided under this section such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

(6) The provisions of section 51 (Penalty on passengers practising frauds on the promoters) and section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Corporation as if they were carriages used on tramways.

(7) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon such omnibuses or in or against any premises held by the Corporation in connection therewith.

(8) The Corporation shall keep the accounts in respect of their omnibus undertaking separate from their other accounts distinguishing therein capital from revenue.

Adaptation
of roads.

5.—(1) (a) Before the Corporation commence to run omnibuses over any road or part of a road it shall be determined by agreement between the Corporation and the road authority (where it is not the Corporation) or failing agreement by the Minister whether it is necessary (in order to provide for the running under the powers of this Order of an omnibus service over any such road or part of a road) to adapt alter or reconstruct such road or part of a road or to strengthen any bridge and if so what sum of money shall be necessary to be expended for such adaptation alteration reconstruction or strengthening and such sum of money shall be payable by the Corporation to the road authority as after-mentioned.

(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of paragraph (a) of this subsection have been so agreed

or determined the Corporation shall give notice in writing to the road authority as to whether they intend to run omnibuses over the road or part of a road or bridge in question. A.D. 1929.
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(c) If the Corporation give notice in writing to the road authority that they intend to run omnibuses over the road or part of a road or bridge in question and if it shall have been agreed or determined that the Corporation are to make any payment to the road authority under the provisions of paragraph (a) of this subsection the Corporation shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction of such road or part of a road or of strengthening such bridge pay to the road authority such proportion of the total amount of the sum agreed or determined to be payable by the Corporation as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the road authority on such work.

(d) Notwithstanding anything in this subsection the Corporation shall not be required to pay any sum in respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road or the strengthening of any bridge which is not executed within three years from the date on which the Corporation shall commence to run omnibuses over the road or part of a road to be adapted altered or reconstructed or over the bridge to be strengthened.

(e) Not more than one payment or (in the case of a payment by instalments in accordance with paragraph (c) of this subsection) one series of payments shall be made in respect of the adaptation alteration or reconstruction of any such road or part of a road or of strengthening any such bridge.

(2) If any such adaptation alteration reconstruction or strengthening as aforesaid shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration and the road authority shall be deemed to be "undertakers" within the meaning of the said Act.

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(3) The road authority shall not under section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Corporation in respect of extraordinary traffic by reason of the user of any highway by the omnibuses of the Corporation.

(4) An agreement under this section with respect to any main road maintained by a local authority at the expense of any county council shall not be made except with the concurrence of that county council.

(5) Nothing in this Order shall impose any obligation upon any railway or canal company to strengthen adapt alter or reconstruct any bridge with the immediate approaches thereto and all other necessary works connected therewith maintainable by them or enlarge any existing obligation.

As to
cesser of
powers.

6.—(1) The powers of running omnibuses under the provisions of this Order on any road or part of a road outside the burgh may at the expiration of ten years from the date on which such running commences and at the expiration of any subsequent period of ten years be determined by the Minister on the application of the local authority of the district in which such road or part of a road is situate upon such terms as the said Minister may determine.

(2) Before issuing an order to determine the said powers the Minister shall hold a local inquiry at which opportunity shall be afforded to any person interested to object to the continuance or cesser of such powers.

Provision
in event
of certain
powers not
being
exercised
within
prescribed
limits.

7. If the Corporation do not within three years from the giving of the consent of the Minister to the running by the Corporation of omnibuses on any route without the burgh provide a service of omnibuses on such route or having provided shall discontinue any such service the Minister may on the application of any local authority within whose district the route or any part of the route is situate and after considering any representation which may be made on behalf of the Corporation by order declare that unless a service of omnibuses be provided within such period as the Minister may by such order prescribe the powers of the Corporation under this Order in respect of the provision and running of omnibuses on such route or part of such

route shall determine and if within the prescribed period such service be not provided as from the expiration of such period the powers of the Corporation under this Order in relation to the provision and running of omnibuses on such route or part of a route shall cease : A.D. 1929.
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Provided that this section shall not apply or have effect in the event of the failure of the Corporation to provide a service of omnibuses on any route being due to strikes unforeseen accident or circumstances beyond the control of the Corporation.

8.—(1) Subject to the provisions of this Order the Corporation may demand and take for passengers and parcels carried on the omnibuses fares and charges including separate maximum fares and charges in respect of services for the conveyance of artisans mechanics and daily labourers not exceeding such maximum fares and charges as may from time to time be approved by the Minister. Fares and charges.

Any application for a revision of such maximum fares or charges may be made by the Corporation or by the local authority of any district in which such omnibuses are run.

Before approving any maximum fares or charges or any revision thereof under this section the Minister may direct an inquiry to be held.

Where the Minister causes any such inquiry as aforesaid to be held all expenses incurred by the Minister in relation to that inquiry shall be paid as the Minister may by order direct either by the Corporation or by any of the parties on whose representation the inquiry is held or partly by the Corporation and partly by any of such parties and the Minister may certify the amount of the expenses so incurred and any sum so certified and directed by the Minister to be paid shall be a debt due to the Crown.

(2) Every passenger may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat required by a passenger nor be of a form or description to annoy or inconvenience other passengers.

(3) The Corporation may if they think fit carry on the omnibuses small parcels not exceeding fifty-six

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A.D. 1929. — pounds in weight and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger but they shall not carry any other goods or animals.

(4) The fares and charges for the time being authorised under the provisions of this Order shall be paid to such persons and in such manner as the Corporation may by notice annexed to the list of fares and charges appoint.

Stopping
and start-
ing places.

9. The Corporation may within the burgh appoint the stations and places from which the omnibuses of the Corporation shall start or at which they may stop for the purposes of taking up or setting down passengers and may fix the time during which such omnibuses shall be allowed to remain at any such place.

Attachment
of signs
indicating
stopping
places to
lamp-posts
&c.

10.—(1) The Corporation may within the burgh attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to any of their omnibus routes signs or directions indicating the position of stopping places for omnibuses :

Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to the lamp-post pole standard or similar erection by the attachment and the Corporation shall indemnify the owner against any claim for damage occasioned to any person or property by or by reason of the attachment.

(2) Nothing in this section shall be deemed to require the owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

(4) The Corporation shall not attach any such sign or direction to any lamp-post pole standard or other similar erection belonging to any railway company except with their consent in writing.

11.—(1) Notwithstanding anything contained in this Order or any other Act or Order to the contrary the Corporation may on any occasion run and reserve omnibuses on any of their omnibus routes for any special purpose which the Corporation may consider necessary or desirable provided that such special omnibuses shall be distinguished from other omnibuses in such manner as may be directed by the Corporation and that during the running of such special omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of omnibuses.

A.D. 1929.
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 Power to reserve motor omnibuses for special purposes.

(2) The Corporation may make byelaws and regulations for prohibiting the use of any such omnibuses by any person other than those for whose conveyance the same are reserved.

(3) The restrictions contained in this Order or any other Act or Order of the Corporation as to fares or charges for passengers shall not extend to any special omnibuses and in respect thereof the Corporation may demand and take such fares or charges as they shall think fit.

12. The Corporation may within the burgh erect and maintain shelters or waiting-rooms for the accommodation of passengers and may use for that purpose portions of the public streets or roads.

Shelters and waiting-rooms.

13. The Corporation may within the burgh provide cloakrooms and rooms or sheds for the storage of bicycles tricycles and other vehicles at any depôt or building used by them in connection with their omnibus undertaking and at suitable places on any of their omnibus routes and the Corporation may make charges for the use of such cloakrooms and sheds and for the deposit of articles and things and bicycles tricycles and other vehicles therein.

Cloak-rooms &c.

14. For the better regulation of persons desiring to travel in the omnibuses of the Corporation the Corporation may make byelaws requiring persons waiting to enter omnibuses at any stopping place or terminus upon any of their omnibus routes within the burgh to wait in lines or queues and to enter such omnibuses in the order in which they stood in such line or queue and for the purpose of securing compliance with any such byelaws the

Power to require intending passengers to wait in lines or queues.

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A.D. 1929. Corporation may within the burgh erect and maintain barriers and posts at any stopping place or terminus and for that purpose may use part of the highway.

For protection of London and North Eastern Railway Company.

15. The Corporation shall not exercise the powers of the sections of this Order whereof the marginal notes respectively are "Stopping and starting places" "Shelters and waiting-rooms" "Cloakrooms &c." and "Power to require intending passengers to wait in lines or queues" on any bridge or road belonging to or maintained by the London and North Eastern Railway Company or so as to obstruct the convenient access to or exit from any station depôt or other property of the said company.

Byelaws.

16. All byelaws and regulations made by the Corporation under the provisions of this Part of this Order shall be made in accordance with the provisions of section 46 and section 47 of the Tramways Act 1870.

Borrowing for omnibus purposes.

17.—(1) The Corporation under the authority of this Order may borrow and from time to time re-borrow so far as not repaid by the sinking fund the sums of money as follows :—

- (a) For the purchase of land the sum of seven thousand five hundred pounds;
- (b) For the provision of sheds or depôts for the housing of omnibuses the sum of twenty-two thousand five hundred pounds;
- (c) For the purchase of motor omnibuses the sum of forty thousand pounds; and
- (d) With the sanction of and subject to the conditions as to the period of repayment and otherwise prescribed by the Secretary of State after consultation with the Minister such further sums as may be requisite for the purposes of the omnibus undertaking of the Corporation.

(2) The Corporation shall annually out of the revenues of the omnibus undertaking set apart as sinking fund and pay into the loans fund a sum equal to not less than one-thirtieth part of any sums which may be borrowed under the provisions of paragraphs (a) and (b) of subsection (1) of this section.

(3) The Corporation shall annually out of the revenues of the omnibus undertaking set apart as sinking fund and pay into the loans fund a sum equal to not less than one-eighth part of any sums which may be

borrowed under the provisions of paragraph (c) of sub-section (1) of this section. A.D. 1929.

(4) The moneys authorised to be borrowed by this Part of this Order shall be charged on the omnibus revenue and the revenue of the tramway undertaking and the burgh general assessment and the Corporation shall annually out of that assessment make good any insufficiency in the revenue of the omnibus undertaking for the carrying out of the obligations of the Corporation under subsections (2) and (3) of this section. The said money may be raised and borrowed in the manner authorised by Part III of this Order.

18. The Corporation shall once in each year after the first year's working cause to be laid before them a statement and balance sheet of the accounts of the omnibus undertaking including the reserve and suspense accounts for the preceding year and an estimate of the revenue to be derived for the ensuing year from the working and use of the omnibuses and also an estimate of the sums required to meet for such year the expenses of working management maintenance of omnibuses stock repairs renewals materials wages taxes and other outgoings and charges including allowances for depreciation and also the interest on borrowed money and the payment of the sums required to be annually made to the sinking fund and the Corporation shall thereupon but subject to the provisions of section 8 of this Order fix annually the tolls fares and charges to be levied by them for the use of the omnibuses for the said year then ensuing not exceeding the maximum fares and charges for the time being approved by the Minister under this Order so that the revenue shall meet the expenditure as before specified for each year.

Statement and balance sheet and estimates to be laid before Corporation.

19. In respect of the exercise of any powers or duties conferred on the Minister or the giving by him of any consents under this Order the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

Inquiries &c. by Minister of Transport.

A.D. 1929.

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Annual ac-
counts to be
furnished to
Minister of
Transport.

Applica-
tion of
revenue of
omnibus
under-
taking.

20. The Corporation shall every year within three months after the closing of their financial year or such longer period as the Minister may allow furnish to the Minister the annual accounts of their tramway undertaking including the annual accounts relating to their omnibuses.

21.—(1) The Corporation shall apply all money received by them on account of revenue in respect of the omnibus undertaking in the manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the omnibus undertaking;

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the omnibus undertaking;

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the omnibus undertaking;

Fourthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in any securities in which they are authorised to invest sums paid into any sinking fund and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Corporation upon the omnibus undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the omnibus undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the omnibus undertaking or for payment of the cost of renewing any part of the omnibuses and buildings and works connected therewith and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as

often as such reduction happens Provided that A.D. 1929.
resort may be had to the reserve fund under the
foregoing provisions although such fund may not
at the time have reached or may have been
reduced below the prescribed maximum :

And the Corporation shall carry to the credit of the
revenue of the tramway undertaking of the Corporation
so much of any balance remaining in any year of the
income of the omnibus undertaking (including the
interest on the reserve fund when such fund amounts
to the prescribed maximum) as may in the opinion of the
Corporation not be required for carrying on the omnibus
undertaking and paying the current expenses connected
therewith respectively.

(2) Any deficiency in the revenue of the omnibus
undertaking shall be made good out of the revenue of
the tramway undertaking of the Corporation or if that
revenue be insufficient for the purpose of meeting the
payment and appropriations specified in heads secondly
and thirdly of subsection (1) of this section then to the
extent necessary to meet such deficiency out of the
burgh general assessment.

(3) Section 36 (Application of tramway revenue) of
the *Kirkcaldy Corporation and Tramways Act 1899*
subsection (4) thereof shall be read and have effect as
if the words "and any deficiency in the revenue of the
omnibus undertaking of the Corporation" were inserted
therein after the words "payments as aforesaid" on
line one of that subsection.

PART III.

LOANS FUND.

22.—(1) Where the Corporation have from time to time any statutory borrowing power they may for the purpose of exercising such power grant mortgage bonds in pursuance of the provisions of this section.

Power to
use one
form of
bond for all
purposes.

(2) All mortgage bonds to be granted by the Corporation after the commencement of this Order for moneys borrowed in the exercise of any statutory borrowing power may be in or near to the form contained in the schedule to this Order.

(3) All mortgage bonds granted under this section and any interest thereon shall rank equally without any

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(4) The repayment of all moneys borrowed and the payment of interest thereon secured by mortgage bonds granted under this section shall be and the same are by virtue of this Order charged indifferently upon all the funds rates assessments and revenues of the Corporation.

(5) Section 378 (Bonds to be recorded and assignments to be registered) of the Burgh Police (Scotland) Act 1892 shall apply to the mortgage bonds granted under this section.

Charge of
moneys
borrowed.

23. All moneys owing or to be owing or borrowed or to be borrowed under any statutory borrowing power and all stock to be issued by the Corporation together with the interest dividends annuities and all other annual sums for the time being payable thereon shall be and the same are hereby by virtue of this Order charged indifferently upon all the funds rates assessments and revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

Establish-
ment of
loans fund.

24.—(1) Notwithstanding anything contained in any Act or Order as from the fifteenth day of May one thousand nine hundred and twenty-nine or as from any succeeding fifteenth day of May the Corporation may if they think fit establish a fund to be called the “Kirkcaldy Corporation Loans Fund” (in this Order referred to as “the loans fund”) to which shall be paid as and when they are received—

(a) All moneys borrowed by the Corporation whether by the issue of stock or other security in connection with the exercise of any statutory borrowing power;

(b) All moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;

(c) The appropriate sums provided in each year out of other funds or accounts of the Corporation

to comply with the terms and conditions as to repayment attaching to their several borrowing powers; A.D. 1929.

- (d) A sum or sums equal to the nett aggregate amount of all dividends or interest payable in each year on the stock bonds or other securities issued in exercise of the statutory borrowing powers of the Corporation and remaining outstanding; and
- (e) Such other sum or sums as may be consistent with or essential to the operation of the loans fund:

And there shall also be carried to the credit of the loans fund the unapplied balances of all moneys borrowed or received on capital account or the interest and dividends thereon or for the redemption thereof except of such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the fifteenth day of May as from which the loans fund shall be established.

(2) The Corporation may also if they think fit carry to the credit of the loans fund all moneys from time to time standing in any reserve depreciation superannuation or other funds of the Corporation for use in accordance with the provisions of subsection (3) of this section.

(3) The moneys of the loans fund shall be used or applied by the Corporation—

- (a) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund or account of the Corporation;
- (b) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation;
- (c) in the payment of dividends and interest on the stock bonds or other securities issued in the exercise of the statutory borrowing powers of the Corporation and remaining outstanding; or
- (d) in the payment of the expenses of managing the loans fund and other expenses incidental thereto:

And any moneys of the loans fund not used or applied in these ways may be invested in statutory securities

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A.D. 1929. — and the sums realised by the sale of such securities or the repayment of such investments shall be repaid on receipt to the loans fund and the moneys of the loans fund shall not be used or applied otherwise than as provided in this subsection or in the section of this Order of which the marginal note is "Raising of contributions to loans fund."

(4) All moneys borrowed or received and used or applied in the exercise of any statutory borrowing power or otherwise as provided by subsection (3) of this section prior to the establishment of the loans fund shall to the extent of the amount outstanding be deemed to have been so used or applied from the loans fund.

(5) Save as in this Order expressly provided all the obligations of the Corporation to the holders of annuities or other securities of the Corporation shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Secretary of State and such scheme may make provision for any matters incidental to the establishment and administration of the loans fund.

(7) The accounts of the Corporation for or relating to the loans fund shall be subject to the same audit and certification as all other accounts of the Corporation under the provisions of any public general Act for the time being in force with respect to the audit and accounts of town councils in Scotland.

Raising of
contribu-
tions to
loans fund.

25.—(1) The Corporation shall from time to time in order to raise the amounts of the several contributions out of the several revenues of the Corporation for payment into the loans fund do all such acts exercise all such powers collect all such money and impose assess and levy all such rates and assessments as they lawfully can or ought to do exercise collect impose assess and levy for the purposes of or in relation to their respective statutory borrowing powers.

(2) If there is a deficiency on the revenue of the Corporation in respect of any required contribution the Corporation shall advance the amount of the deficiency out of the loans fund.

(3) The amount so advanced shall be a debt due from the revenue of the Corporation on which the deficiency existed to the loans fund and interest shall be payable thereon at a rate to be determined upon by the Corporation until repayment and the same debt and interest thereon shall (as soon as in the judgment of the Corporation may be) be raised and paid out of the revenue of the Corporation on which the deficiency existed. A.D. 1929.
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26.—(1) If at any time it shall appear to the Corporation that the amount of any deficiency in respect of any contribution from any of the revenues of the Corporation to the loans fund as hereinbefore provided should be paid into the loans fund out of moneys to be raised by means of the guarantee rate hereinafter mentioned and the Corporation at a meeting specially called with notice of the object resolve so to pay the amount of any such deficiency the Corporation may and they are hereby empowered to impose assess and levy upon and from all lands and heritages situated within the burgh such rate as they may consider necessary for the purpose of paying the amount of any such deficiency which rate shall be called the "loans fund guarantee rate" and the sums so imposed assessed and levied shall be carried to and form part of the loans fund and be applied as herein provided with respect to contributions to the said fund. Provided that if and when the Corporation require to exercise the powers of this section any sum imposed assessed or levied as a loans fund guarantee rate shall be deemed to be a debt due from the revenue of the department of the Corporation on which the deficiency existed together with the interest thereon at a rate to be determined upon by the Corporation until repayment and the same debt and interest thereon shall (as soon as in the judgment of the Corporation may be) be raised and paid out of the revenue of the department of the Corporation on which the deficiency existed and be applied for the relief of the rate or rates having the same incidence as the loans fund guarantee rate. Loans fund guarantee rate.

(2) The loans fund guarantee rate shall be imposed and assessed one half on the owners and one half on the occupiers of all lands and heritages within the burgh and shall be levied recovered and collected in the same

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Order Confirmation Act, 1929.

A.D. 1929. — manner as the public health general assessment is authorised to be levied under the Public Health (Scotland) Act 1897.

Saving for
existing
rating
limits and
exemptions.

27.—(1) Notwithstanding anything contained in this Order the accounts of the Corporation shall be so kept as to show under a separate heading or division in relation to the respective funds assessments and accounts of the Corporation the amounts of all revenues and expenditure (including moneys paid into or out of the loans fund) and the Corporation shall not impose assess or levy any rate for the purpose of any fund assessment or account which taking one year with another shall be in excess of any limit which may now be prescribed as the maximum amount of the rate for such fund assessment or account.

(2) Nothing in this Order shall limit prejudice or affect any exemption to which any company body or person is now entitled from or in respect of any rate imposed assessed or levied by the Corporation for any purpose.

Evidence
of transfer
or trans-
mission of
securities.

28. It shall not be obligatory on the Corporation to receive or register any transfer assignation certificate of death burial bankruptcy or marriage probate confirmation letters of administration or other document evidencing a transmission of any authorised security except upon the production to and temporary deposit with the town clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Receipt in
case of
persons not
sui juris.

29. If any money is payable to a bondholder mortgagee or stockholder being a pupil minor idiot or lunatic the receipt of the guardian or trustee of his estate or of his tutor or curator or curator bonis shall be a sufficient discharge to the Corporation.

Interest on
securities
held jointly.

30. Where more persons than one are registered as joint holders of any bond or mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the town clerk by any other of them.

31. Notwithstanding anything contained in this Order the Corporation shall show in their accounts relating to any undertaking or purpose all items (including payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

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Form of
accounts.

32. In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to either or any of them any receipts credits payments and liabilities which from time to time it appears to them ought to be so apportioned or carried.

Apportion-
ment of
items.

33. Notwithstanding anything contained in any Acts or Orders or regulations governing the same the rate of accumulation of the annual payments to every accumulating sinking fund formed by the Corporation for any purpose shall in respect of any moneys to be borrowed by the Corporation after the commencement of this Order be three pounds ten shillings per centum per annum or such other rate as the Secretary of State may from time to time approve.

Rate of
accumula-
tion of
annual
payments
to sinking
fund for
repayment
of loans.

34.—(1) The chamberlain shall if and when he is requested by the Secretary of State so to do transmit to the Secretary of State a return showing the provision made for the repayment of any loans raised by the Corporation under the authority of the local Acts and Orders.

Return to
Secretary
of State
with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Secretary of State may require and shall if so required by him be verified by statutory declaration of the chamberlain and be transmitted within one month after the making of the request and in the event of his failing to make such return the chamberlain shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Secretary of State as a debt to the Crown is recoverable and notwithstanding the recovery of such penalty the making of the return shall be enforceable by decree of either division of the Inner House of the Court of Session pronounced in a summary application presented for that purpose.

(3) If it appears to the Secretary of State by such a return as aforesaid or otherwise that the Corporation

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A.D. 1929. — have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required to be set apart for any sinking fund (whether such instalment or annual payment or sum is required by any Act or Order or by the Secretary of State in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Secretary of State may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Secretary of State as soon as the order is complied with and any such order shall be enforceable by decree of either division of the Inner House of the Court of Session pronounced in a summary application presented for that purpose.

(4) The provisions of this section shall extend and apply to any annual returns required to be made to the Secretary of State with regard to the repayment of debt by any provision of the local Acts and Orders notwithstanding anything contrary to or inconsistent therewith in any such Act or Order.

Protection
of lender
from
inquiry.

35. A person lending money to the Corporation under this Order shall not be bound to inquire as to the observance by the Corporation of any provisions of this Order or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corpora-
tion not
to regard
trusts.

36. The Corporation shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of bonds of the Corporation shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of any such loan or security or any part thereof or any interest thereon not

entered in their register and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money. A.D. 1929.
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37. Money borrowed by the Corporation under this Order shall be applied only for the purposes of this Order to which capital is properly applicable and for which it is authorised to be borrowed. Applica-
 tion of
 money
 borrowed.

38. Nothing in this Order contained shall pre- judicially affect any bonds or mortgages granted on the credit of any fund rate assessment revenue or property of the Corporation and now in force and all mortgages so granted and now in force shall have in all respects the same priorities and be secured in full to all intents and purposes upon such fund rate assessment revenue or property of the Corporation as if this Order had not been passed. Saving for
 existing
 mortgages
 of Corpora-
 tion.

39. The Corporation shall pay off any moneys borrowed by them on bond or mortgage either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or others of them. Mode of
 repayment
 of money
 borrowed.

40. The following sections of the local Acts and Orders are repealed :— Repeal of
 certain
 provisions
 of local
 Acts and
 Orders.

The Kirkcaldy Burgh and Harbour Act 1876 section 109 (Form of mortgage) and the Fifth Schedule.

The Kirkcaldy Corporation and Tramways Act 1899 section 61 (Bonds for borrowed money) and the Second Schedule.

The Kirkcaldy Corporation Order 1904 section 88 (Bonds for money borrowed for harbour purposes) and the Second Schedule.

41. For the purpose of providing temporarily for their current expenses under any public general or private or local Act or Provisional Order or order or sanction of any Government department between the commence- ment of any financial year and the date when the Cor- poration revenues and assessments for that year are received or for providing temporarily for the payment of Power to
 borrow
 tem-
 porarily.

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A.D. 1929. — any expenses which the Corporation are entitled to defray from moneys borrowed under any public general or private or local Act or Provisional Order or order or sanction of any Government department on the security of any assessment or revenue it shall be lawful for the Corporation to advance from the Corporation loans fund such moneys as may be necessary to provide for the said current or other expenses. Provided always that such advances for current expenses shall as nearly as may be be repaid to the Corporation loans fund at or before the last day of the financial year to which such borrowing applies. Provided further that every other sum borrowed under the provisions of this section shall if any such sum is repaid by means of a loan whether on mortgage or otherwise be deemed to have been borrowed at the date at which such sum was first temporarily borrowed and all provisions for the repayment of such loan shall apply accordingly.

Costs of
Order.

42. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation out of any funds (not being in the nature of capital) rates or revenues belonging to them or under their control or out of moneys to be borrowed for that purpose which moneys the Corporation are hereby authorised to borrow in manner provided by and subject to the provisions of this Order. Provided that any moneys borrowed by the Corporation for the purposes of this section shall be repaid within five years from the commencement of this Order.

The SCHEDULE referred to in the foregoing Order.

FORM OF MORTGAGE BOND.

ROYAL BURGH OF KIRKCALDY.

Number

By virtue of the Kirkcaldy Corporation Order 1929 and of other powers in that behalf—

We the royal burgh of Kirkcaldy (hereinafter in these presents referred to as "the Corporation") in consideration of

A.D. 1929.

advanced and paid to us by C.D. of E. do hereby bind and oblige the said burgh out of the first and readiest of the moneys to be raised under the annual burgh rates and assessments authorised to be imposed and levied by the said burgh under public Acts and local Acts and Orders including the Order first above mentioned to pay at the term of

to the said C.D. his executors or assignees the said sum of
and also the interest

thereof at the rate of per centum per annum at the terms of Whitsunday and Martinmas in each year till the said sum is paid and for the further security of the said C.D. we do hereby assign to him his executors or assignees such proportion of the said moneys to be raised under the said annual rates and assessments and of the revenues of the Corporation from time to time arising from any undertakings land or other property for the time being of the Corporation as shall be equivalent to the said sum now paid to us and the interest thereon as aforesaid and for and in respect of the said interest we the Corporation shall pay the several sums contained in the

interest warrants bearing the number and date hereof and delivered herewith and that at the several times mentioned in such warrants upon delivery of the same respectively and such delivery shall be a sufficient receipt and discharge to us for the contents of such warrants Declaring that the said C.D. and his foresaids shall not be entitled to make and that we shall not be bound to register any partial assignation of these presents or of the sums of money principal or interest herein contained and we consent to the registration hereof for preservation and execution IN WITNESS WHEREOF these presents are subscribed and sealed at a meeting of the Corporation held at Kirkcaldy upon the

day of _____ nineteen
hundred and _____ years before these
witnesses :

(Witness)

Provost or Chairman or Councillor.

(Witness)

Town Clerk.

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FOR

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